

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 08-cv-00996-RPM

KATHY D. CRUZ and
RAMON L. CRUZ,

Plaintiffs,

v.

CHRISTOPHER R. COLE, M.D. and
COLORADO SPRINGS CARDIOLOGISTS, P.C.,

Defendants.

JUDGMENT

Pursuant to and in accordance with the Order entered by Senior Judge Richard P. Matsch on November 26, 2008 [13], incorporated herein by reference, it was

ORDERED that defendant Colorado Springs Cardiologists, P.C. is dismissed with prejudice.

This matter was tried on the remaining claims from March 15, 2010, through March 18, 2010, before an empaneled jury of twelve, Senior District Judge Richard P. Matsch presiding. Prior to the close of evidence two jurors were excused due to illness. The trial proceeded to conclusion and the jury found that the plaintiffs failed to prove by a preponderance of the evidence that the defendant, Dr. Christopher Cole, was negligent. Pursuant to the jury's verdict it is

FURTHER ORDERED that judgment is entered in favor of defendant Christopher Cole, M.D. and against plaintiffs Kathy D. Cruz and Ramon L. Cruz. It is

FURTHER ORDERED that defendant Christopher Cole, M.D. shall have his costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen days of the entry of judgment. It is

FURTHER ORDERED that the Complaint and this civil action are dismissed with prejudice.

DATED at Denver, Colorado, this 18th day of March, 2010.

FOR THE COURT:

Gregory C. Langham, Clerk

s/J. Chris Smith

By: _____
Deputy Clerk